

Suruvu Parshaiah vs State Of A.P. on 30 September, 2005

Equivalent citations: 2005(2)ALD(CRI)806, 2006CRILJ824, 2006 CRI. L. J. 824, 2006 (2) AJHAR (NOC) 420 (AP), (2006) 2 EASTCRIC 395, 2005 (2) ALD(CRL) 806, 2006 (1) ANDHLT(CRI) 182 AP

ORDER

P. Lakshmana Reddy, J.

1. This is a Criminal Revision Case filed against the conviction and sentence recorded against the revision-petitioner in C. C. No. 282 of 2001, dated 11-12-2002 on the file of the Judicial Magistrate of First Class (Mobile), Karimnagar which was confirmed in Crl. A. No. 184 of 2002, dated 10-6-2003 on the file of the III Additional Sessions Judge, Karimnagar.
2. The revision-petitioner will hereinafter be referred to as accused in this judgment.
- 3-4. The relevant facts in brief are as follows :

The Circle Inspector of Police, Karimnagar Rural Police Station filed this case before the learned Magistrate alleging that on 22-11-1997 at about 8.00 p.m. near Padma-nagar in Karimnagar Town, the revision-petitioner-accused drove the A.P.S.R.T.C. bus bearing No. AP- 10-E-1044 in a rash and negligent manner and dashed against the jeep bearing No. MH-l-F-358 coming in the opposite direction while overtaking the tractor parked on the road and thereby caused the death of four persons and caused injuries to five more persons who were travelling in the jeep and thereby committed the offences punishable under Sections 304-A, 338 and 337, I. P. C.

5. On the said allegations, the learned Magistrate took the case on file for the said offences and after observing all formalities, examined the accused under Section 251, Cr. P. C. wherein he pleaded not guilty of the allegations made against him and claimed to be tried.

6. The learned Magistrate conducted trial and during trial the prosecution examined P.Ws. 1 to 18 and marked Exs. P-1 to P-24. During Section 313, Cr. P. C. examination the accused described the incriminating evidence found against him as false. No oral evidence was adduced on behalf of the accused, but marked Exs. D-1 and D-2. The learned Magistrate after considering the evidence adduced on behalf of the prosecution and denial of the accused, found the accused guilty of the offences punishable under Sections 304-A and 337, I. P. C., convicted him and sentenced him

to undergo rigorous imprisonment for a period of two years and also to pay a fine of Rs. 2,500/- for the offence punishable under Section 304-A, I. P. C. and further sentenced him to pay a fine of Rs. 500/- for the offence punishable under Section 337, I. P. C. The learned Magistrate found the accused not guilty of the offence punishable under Section 338, I. P. C.

7. Aggrieved by the said conviction for the offences punishable under Sections 304-A and 337, I. P. C. and sentence imposed thereon, the accused preferred an appeal before the Sessions Judge who made over the same to the III Additional Sessions Judge, Karimnagar and after due hearing, the learned III Additional Sessions Judge confirmed the conviction and sentence in respect of both the offences and dismissed the appeal.

8. Aggrieved by the same, the revision-petitioner preferred the present revision petition contending that the conviction and sentence is bad in law and not supported by any clinching evidence. The principal witnesses P.Ws. 1 to 3 who are the alleged injured witnesses including the de facto complainant did not support the case of the prosecution. The conviction based on the evidence of PW-14 who is a child witness is totally incorrect as the evidence of child witness is not corroborated by any other evidence. It is further contended that in any event the sentence of two years' imprisonment for the offence punishable under Section 304-A, I. P. C. is highly exorbitant. Hence, the conviction and sentence are liable to be set aside.

9. During the course of hearing, the learned counsel for the revision-petitioner reiterated the contentions raised in the grounds of revision. He submitted that it is a case of head-on-collision and there is no acceptable evidence to show that the said accident took place on account of the fault of the accused who was driving the bus. The Courts below erred in placing the reliance on the evidence of PW-3 and the child witness PW-14 and that the evidence of P.Ws. 3 and 6 is not consistent with each other and that the evidence of child witness is not corroborated by any other evidence and, therefore, the conviction and sentence passed against the revision-petitioner is liable to be set aside. He further submitted that the prosecution miserably failed to prove the rash and negligent act on the part of the accused. Hence, the conviction and sentence recorded by the Courts below are not sustainable in law.

10. On the other hand, the learned Public Prosecutor submitted that there is sufficient evidence to show that the bus driver was at fault and the driver drove the bus in a rash and negligent manner and that the circumstantial evidence also indicates that the bus driver went to the wrong side of the road and hit the jeep and hence the Courts below rightly found the accused guilty of the offences punishable under Sections 304-A and 337, I. P. C. and that there is no need for interference of such concurrent findings of the Courts below and that the revision petition is liable to be dismissed.

11. The point that arises for determination in this revision is:

Whether the conviction and sentence recorded by the Courts below against the revision-petitioner are sustainable in law?

POINT:

12. It is not disputed that there was head-on-collision between the bus bearing No. AP-10-E-1044 and the jeep bearing No. MH-I-F 358 in Padmanagar locality on the outskirts of Karimnagar town while the bus was going from Karimnagar to Sircilla and the jeep was coming from Sircilla to Karimnagar and in that accident four persons including the jeep driver and the three occupants of the jeep died and five more occupants received injuries and the jeep was badly damaged. It cannot also be disputed as is evident from the cross-examination of the Investigating Officer-PW-17 that the accused was the driver driving the A.P.S.R.T.C. bus involved in the accident at the time of the accident. Because the Investigating Officer in his evidence stated that he obtained S. R. Ex. P-2-1 from the A. P. S. R, T. C. Bus Depot and found that, the accused was the driver of the said bus on that day at the time of the accident. It was not even suggested to PW-17 that the accused was not the driver of the bus at the time of the accident. It was suggested to him that though the accident was not occurred due to rash and negligent driving by the accused, he foisted this case against the accused. So it is evident that the accused disputed only the rash and negligent act on his part and he did not dispute the fact that he was the driver of the bus at the time of the accident. The death of four persons in the accident and the injuries received by five more occupants of the jeep were spoken to by doctors whose evidence was not challenged in the cross-examination.

13. The only point that arises for determination is whether the prosecution succeeded to prove rash and negligent driving on the part of the accused who was driving the bus at the time of the said accident in which four persons died and five others received injuries. The prosecution examined the de facto complainant as PW-1. He is one of the occupants of the jeep at the time of the accident. He stated that at about 8.00 p.m. while he was coming to Karimnagar from Sircilla in the jeep as passenger and when the jeep reached near Padmanagar Colony in Karimnagar town, one A. P. S. R. T. C. bus came in the opposite direction and dashed against their jeep and as a result he sustained injuries and some of the passengers in the Jeep died and the police obtained his signature on the report Ex. P-1 but he does not know the contents of the said report. He did not state anything about the rash and negligent driving on the part of the bus driver or jeep driver. He simply stated that the bus came in the opposite direction and dashed against the jeep. He was treated hostile by the prosecution and it was suggested to him that he gave false evidence in the Court to help the accused though he stated about the negligence on the part of the accused during his examination by the police. The said suggestion was denied. Therefore, the evidence of PW-1 does not help the prosecution to prove the rash and negligent

driving on the part of the accused.

14. PW-2 (Almareddy Ram Reddy) another injured witness who was travelling in the jeep stated that he boarded the jeep at Sircilla to go to Karimnagar and after boarding the jeep he went asleep and by the time the jeep reached Padmanagar it met with an accident and only after the accident he woke up from the sleep and in that accident he received injuries and he was shifted to the Hospital for treatment and he does not know how the accident took place and that he saw one bus facing towards Sircilla which collided with jeep. This witness was also treated hostile and similar suggestion was put to him and it was denied by the witness. Therefore, the evidence of this witness also does not help the prosecution to prove the rash and negligent driving on the part of the accused.

15. PW-3 (Kondur Anil Babu) another occupant of the jeep stated that at 7.00 p.m. he boarded the jeep at Sircilla to go to Karimnagar along with 8 other persons and when the jeep reached the limits of Karimnagar i.e. at Padmanagar there was a stationed tractor by the left side of the road leading to Karimnagar and the bus was coming from Karimnagar in the opposite direction at high speed and the bus dashed against the right side of the jeep due to which all the passengers fell down on the road and that he sustained injury and three other passengers died on the spot. As this witness stated that he could not say as to who drove the said A.P.S.R.T.C. bus, he was treated hostile by the prosecution. As this witness was treated hostile by the prosecution there was no cross-examination by the accused. The learned Assistant Public Prosecutor in his cross-examination suggested to him that he stated before the police that the R. T. C. bus driven by the accused came in the opposite direction in a rash and negligent manner at high speed and dashed against, the jeep as (sic) in Ex. P-4. The said suggestion was denied by this witness. However, the evidence of this witness that there was a stationed tractor on the left side of the road leading to the Karimnagar at that place and the bus came at high speed and dashed against the right side of the jeep remains unchallenged. But, he did not state that bus driver was rash and negligent.

16. PW-4 (Mahadev Krishna) is the brother of one of the deceased and he is not an eye-witness to the accident. Therefore, his evidence is not relevant for determination of the disputed point in this case.

17. P.Ws. 5, 11, 12, 15 and 16 are the doctors who conducted post-mortem examination over the dead bodies of the deceased and who examined the injured and issued wound certificates. As already observed supra, their evidence is not challenged in their cross-examination. As they did not speak anything about the rash and negligent act, their evidence is of not much relevance for determination of the disputed point.

18. PW-6 (Nagula Sridhar) a resident of Karimnagar town deposed that the de-ceased-Nagula Thirupathi was running jeep on hire in the route of Karimnagar-Sircilla and that in the month of November, 1997 on one day during night at about 8.00 p.m. he was coming to Karimnagar on Suzuki motor cycle from Sircilla behind the jeep at a distance of 35 yards and at that time one R. T. C. bus came in the opposite direction from Karimnagar at high speed, overtook the tractor and dashed against the jeep even though the jeep was on the left side of the road and due to that the persons in the jeep received injuries. He informed one Srinivas, the younger brother of the. deceased-Thirupathi at his house. This witness further stated that he knew the deceased but he has no relationship with the deceased-NagulaThirupathi. When he was confronted in the cross-examination with reference to his earlier statement before the police to the effect that the deceased is his younger brother, this witness denied having stated so before the police as in Ex. D-2. But the Investigating Officer stated that this witness stated before him as in Ex. D-2. Further as seen from the cross-examination of the Investigating Officer-PW-17 this witness did not state in his earlier statement that he was going behind the jeep on his Suzuki motorcycle and he witnessed the accident. On the other hand, as seen from his earlier statement made under Section 161 Cr. P. C. before the Investigating Officer he did not state that he was an eye-witness and on the other hand he stated that he only came to know about the accident. When it was suggested to him that he did not state before the police that he has seen the accident personally and on the other hand he stated before the police that after coming to know about the accident he rushed to the place of accident, he denied the said suggestion. So, a perusal of the earlier statement made by this witness before the police, it is clear that he did not claim himself as an eye-witness and on the other hand, he stated that after coming to know about the accident he went there and found the deceased-Thirupathi and thereafter informed the brother of the deceased-Thirupathi. Therefore, the present evidence of this witness that he witnessed the accident is a clear development. If really he had witnessed the accident he would not have failed to state the same before the Investigating Officer and he would not have stated before the Investigating Officer that he came to know about the accident. Hence, I find considerable force in the contention of the counsel for the revision-petitioner that the appellate Court grossly erred in placing reliance on the evidence of PW-6 to prove the rash and negligent driving on the part of the accused. In fact the trial Court rightly disbelieved his evidence. In my considered view, the belated evidence of PW-6 cannot at all be considered to determine the disputed point whether the accident occurred on account of the rash and negligent driving of the accused.

19. PW-7 (Nagula Salman) is the brother of the jeep driver late Thirupathi. He is not an eye-witness. He was informed by PW-6 about the accident and then he rushed to the place of accident. Therefore, his evidence is not helpful to the case of the prosecution to prove the rash and negligent driving on the part of the accused.

20. PW-8 (Nandi Ranendra Prasad) is one of the inquest panchayatdars. He did not state anything about the alleged rash and negligent driving on the part of the accused.

21. PW-9 (Katipally Pratap Reddy) is the brother of another deceased-Katipally Sanjeev Reddy. His evidence is only to the effect that on the next morning he came to know about the accident and he went to the accident spot and found both his brother and sister-in-law died. He did not state anything about the alleged rash and negligent driving of the accused.

22. PW-10 (Nampally Laxmi) is also not an eye-witness. She is one of the inquest panchayatdars in respect of the deceased-Kamala. She also did not state anything about the rash and negligent act of the accused.

23. PW-13 (P. Shanker Reddy) is the Motor Vehicle Inspector. He stated that on 25-11-1997 he received requisition from the Circle Inspector of Police, Karimnagaf Rural to inspect the bus bearing No. AP-10-1044 and jeep bearing No. MH-1F-358 and that on the same day he inspected both the vehicles at 5.30 p.m. and found the following damages on the bus ;

- (1) Right side bumper bent.
- (2) Parking light broken.
- (3) Body near headlight slightly damaged.
- (4) Wind screen broken.

24. He further stated that he found the following damages to the jeep also :

- (1) Right side body and the entire body badly damaged.
- (2) Right angular bonet wind screen broken.
- (3) Wind screen glass frame bent.
- (4) Steering rod bent.
- (5) All seats frames bent.

25. He stated that he found steering, brakes, and mechanical conditions of the bus are intact and he conducted road test for the bus and found no mechanical defect in the bus. He further stated that he tested manually the jeep brakes and found them intact and that he issued report Ex. P-12 stating that the accident was not due to any mechanical defects of either of the vehicles. The evidence of this witness indicates that the right side portions of both the bus and jeep collided with each other. From

his evidence it is clear that there was no mechanical defect either in the bus or in the jeep. It is also not the case of the accused there was any mechanical defect in the vehicle.

26. PW-14 is the minor daughter of two deceased. She stated that herself, her parents and some others boarded the jeep bearing No. MH-l-F-358 from Sircilla to Karimnagar and when the jeep entered into the limits of Karimnagar, one R. T. C. bus came in the opposite direction and dashed against the jeep due to which the jeep turned turtle on its right side and as a result of it her parents died on the spot and she received injuries on her right shoulder. She stated that the accused was the driver of the R. T. C. bus. Admittedly, this witness was the injured witness and, therefore, her presence in the jeep at the time of the accident cannot be disputed. She stated that she was sitting behind the driver of the jeep. It cannot also be said that there was no scope for her to witness the manner in which the accident took place. In fact, nothing was elicited in the cross-examination to discredit her testimony in that regard. The entire cross-examination was in respect of the identification of the driver, which was not at all in dispute. Regarding the point in dispute, the evidence of this witness is that the R.T.C. bus was coming at a speed and dashed against the jeep, due to which the jeep turned turtle. She did not state that the bus came with high speed and that the accused-driver was rash and negligent in his driving the bus and that the accused was responsible for the accident. This witness simply stated that the bus came at speed and dashed against the jeep.

27. P.W. 18 is the photographer who took the photographs of dead bodies and also scene of offence through whom 14 photos are marked as Ex. P-23.

28. PW-17 is the Investigating Officer. He stated that he received report Ex. P-1 and registered the case and took up investigation and held inquest over the dead bodies and that he inspected the scene of offence and prepared rough sketch and also prepared observation panchanama Ex. P-20.

29. As seen from the abovesaid evidence adduced on behalf of the prosecution, the only direct evidence available for the prosecution is the evidence of PW-3 and PW-14. Out of them PW-3 stated that the bus came with high speed and dashed against the jeep. As already observed supra, this witness was treated hostile by the prosecution when cross-examined by the Assistant Public Prosecutor and there was no cross-examination on behalf of the accused. This witness did not state that the accused drove the bus in a rash and negligent manner. He simply stated that the bus came with high speed. The other witness PW-14 the child witness stated that the bus came at speed and dashed against the jeep. This is only the oral evidence that is available for the prosecution to prove the alleged rash and negligent driving on the part of the accused. The trial Court found the accused guilty on the basis of the said oral evidence of P.Ws. 3 and 14. For better appreciation, it is useful to extract the relevant observations in the judgment of the trial Court contained in paragraph 39. "The evidence of PW-3 who clearly deposed about the rash and negligent driving of the bus. PW-14 who is the daughter of deceased-couple in the accident clearly identified the accused as the driver of the bus." "The rash and negligent driving can be inferred from the damage caused to the jeep and impact of the dash given by the bus by coming on other side as seen from photos Exs. P-21 and P-19 may clearly proves that the bus hit the jeep by going to right side of road and then came to left side of road, due to the Impact of the dash the jeep completely damaged, persons died on the spot and other passengers injured." The trial Court inferred the rash and negligent driving from the damage

caused to the jeep and the impact of the dash given by the bus and also relied on photos Exs. P-21 and P-19 and observed that the bus went to the right side of the road and then came to the left side of the road. Neither the Investigating Officer nor any other witness spoke about the photos Exs. P-19 and P-21. It is not known as to how the trial Court came to the conclusion that the bus hit the jeep by going to the right side of the road and then came to the left side of the road. A perusal of the photos does not give such an impression. None of the witnesses including the Investigating Officer stated that the bus went to the right side of the road and then came back to the left side of the road after hitting the jeep. Obviously the trial Court appears to have perused the contents of the scene of offence panchnama Ex. P-20 to come to the conclusion that the bus went to the right side of the road and hit the jeep. The contents of panchanama Ex. P-20 are not proved. The trial Court failed to realize that the scene of offence panchanama is not substantive evidence and without there being evidence in Court the contents of panchanama cannot be relied upon and that the contents can be used only to corroborate the oral testimony given in the Court. Here in the instant case, Ex. P-20 is said to have been prepared in the presence of two mediators viz. Karunabathula Premsagar Rao and Nandi Rajendra Prasad and they are cited as witnesses in the charge-sheet as LWs-15 and 16. LW-15 was not examined and Nandi Rajendra Prasad was examined as PW-8. He did not state anything about the scene of offence panchanama. He only spoke about the inquest panchanamas. In fact, the scene of offence panchanama was not marked through him and it was marked only through the Investigating Officer PW-17. Even the Investigating Officer PW-17 did not speak about the contents of scene of offence panchanama. He simply stated that he prepared rough sketch of scene of offence Ex. P-19 and he also prepared separate panchanamas on 23-11-1997 at 1.00 p.m. in the presence of same paichas and Ex. P-20 is the panchanama. He did not state anything more than that. When such is the evidence adduced on behalf of the prosecution in respect of the circumstantial evidence, it is not at all open for the trial Court to peruse the contents of observation panchanama and to take the contents of panchanama as corroboration to the oral testimony or to draw inference of rash and negligent driving. The proposition in this case was conducted in a reckless manner by the Assistant Public Prosecutor concerned. In accident cases it is too much to expect oral evidence to prove the rash and negligent driving as accidents take place within fraction of seconds and it may not be possible for any witness to speak the exact manner in which the accident took place. Therefore, it is only the circumstantial evidence which is very very important to come to a conclusion as to how the accident took place and whether there was any rash and negligent driving on the part of the driver of the vehicle. Moreso, in accidents of head-on-collision involving two vehicles where it is to be decided as to which driver was responsible for the accident or both the drivers were responsible. But, unfortunately the learned Assistant Public Prosecutor who conducted the case before the trial Court did not at all realize that the scene of offence panchanama is not substantive evidence and that mere marking of panchanama is not sufficient and that the contents of panchanama are to be brought on record through the mediators or through the Investigating Officer through whom the panchanama is marked. I have come across several cases where the contents of panchanama were not brought on record and simply panchanamas were marked and in some cases Courts also placed reliance on such panchanamas. The trial Courts also must realize that mere marking of panchanama is not sufficient and that the contents of panchanama shall be spoken to by the witnesses in the presence of the accused to enable him to cross-examine and then only the Court can place reliance on the contents of panchanama. Therefore, the Courts must exhibit patience to record the contents of the panchanama on which the prosecution proposes to rely to prove the relevant circumstances required

to establish the guilt of the accused. Here in the instant case, there is absolutely no legal evidence to prove any of the circumstances. Without there being evidence, the trial Court drew the inference that the bus went to right side of the road and hit the jeep and, therefore, the driver of the bus was rash and negligent. Of course, so far as the damages to the vehicles are concerned, the Motor Vehicle Inspector stated about the damages In respect of both the vehicles. The right side bumper of the bus was bent and parking lights broken, body near headlight of the bus was slightly damaged and the wind screen broken. So far as the damages to the jeep is concerned, the right side body and the entire body badly damaged and right angular bonet and wind screen broken and wind screen glass frame also bent, the steering rod bent and all the seats frames were also bent. These damages rioted by the Motor Vehicle Inspector shows that more damage was caused to the jeep. But, merely because more damages was caused to the jeep, it cannot be inferred from that circumstances that the bus driver went with high speed and hit the Jeep. In fact the said damages indicate that the jeep driver went with high speed and hit the bus and, therefore, there was extensive damage to the jeep and not to the bus. There is another circumstance in support of such inference because none of the bus passengers received injuries. If really the bus was going with high speed at the time when it hit the jeep, the passengers in the bus should have necessarily received injuries on account of sudden jerk. Therefore, the inference drawn by the trial Court basing on the damage to the jeep is not sound and correct.

30. Coming to the oral evidence of PWs-3 and 14, the alleged incriminating evidence in the deposition of PW-3 is that the bus came with high speed. He did not explain what is meant by 'high speed'. It is also not possible for the occupants of the jeep to observe the speed of the opposite coming vehicle especially during night time. At best he can say the speed of the jeep in which he was travelling but not the speed of the vehicle coming in the opposite direction. Therefore, no reliance can be placed on the evidence of this witness in the absence of corroboration from the circumstantial evidence. As already observed supra, there is absolutely no circumstantial evidence brought on record to indicate the speed with which the bus was being driven at the time of the accident. As already observed supra, PW-3 did not state that there was rash and negligent driving on the part of the driver of the bus. Corning to the evidence of PW-14 a child witness, she did not even state that the bus was coming with high speed. She simply stated that the bus was coming at a speed. As the bus was going outside Karimnagar town, it cannot be expected to go without speed like a bullock cart. The bus is expected to move with speed. Therefore, the evidence of this witness that the bus came with speed does not indicate that the driver of the bus was driving the bus in a rash and negligent manner. Further, it is also not possible for this witness to observe the speed with which the opposite vehicle is coming, for the reasons stated supra. Therefore, with such evidence of PWs-3 and 14, it cannot be concluded that the prosecution proved beyond reasonable doubt the rash and negligent driving on the part of the driver of the bus. The trial Court appears to have been carried away with ghastly nature of accident in which four persons lost their valuable lives and several others received injuries. The Courts are not expected to be prejudicial or influenced by such ghastliness of the accident. The Courts are expected to appreciate evidence in an unbiased manner to find out whether there was rash and negligent driving or otherwise on the part of the accused-drivers, especially when two vehicles are involved and the accident is head-on-collision the Courts have to scrutinize the evidence carefully. Here in the instant case the rash and negligent driving (sic) on the part of the jeep driver cannot be ruled out. Merely because jeep driver died in the

accident, the bus is & heavy vehicle when compared to the jeep, it cannot be said the accident took place on account of the negligent act. There is no proper investigation in this case. The circumstantial evidence required is not gathered and the little evidence gathered by the Investigating Officer is not brought on record by the Assistant Public Prosecutor. It is in the evidence of PW-3 that there was a tractor stationed on the left side of the road leading to Karimnagar. The jeep was also going towards Karimnagar. So obviously, the tractor was parked on the left side of the road in which the jeep was expected to pass. The jeep driver ought to have waited for the bus to cross that tractor and then proceed as the tractor was parked In the same direction in which the jeep has to pass through. The Investigating Officer failed to note as to where exactly the tractor had been parked and how much space had been left on the road at the place where the tractor had been parked. If we go by the evidence of PW-3, the tractor was parked on the left side of the road while coming from Sircilla to Karimnagar in the same direction in which the jeep was also going and, therefore, the rash and negligent driving on the part of the jeep driver cannot be ruled out.

31. Therefore, In my considered view the inference drawn by the trial Court in respect of the rash and negligent driving on the part of the accused-driver is not at all sound and that the Inference drawn is not based on legal evidence. As already observed supra, from the evidence of PWs-3 and 14 who stated that the bus came with speed and hit the jeep, is not at all sufficient to hold that the accused-driver drove the bus in a rash and negligent manner and the said negligent act resulted in the head-on-collision with the jeep coming in the opposite direction. The trial Court did not properly scrutinize the evidence and the appreciation of legal evidence on record is perverse.

32. Coming to the appellate Court, the learned appellate Judge, also did not appreciate the evidence in the proper perspective. For better appreciation, it is also useful to extract the relevant observations of the appellate Court in respect of the disputed point viz. rash and negligent driving on the part of the accused. In paragraph 10 of the said judgment while referring to the evidence of PW-14, the learned Judge observed as follows :

So also as seen from the evidence of PW-14, it is noticed that on the date of the accident at 7.00 p.m. PW-14 aged 13 years, her parents and some others boarded in a private jeep bearing No. 1 MH-I-F-358 at Sircilla to go to Karimnagar. When their jeep entered into the limits of Karimnagar in the meantime one R.T.C. bus was coming In opposite direction at high speed and dashed against their jeep resulting their jeep turned turtle.

So far as the evidence of PW-14 regarding herself and her parents boarding the Jeep is not in dispute. Regarding the negligence aspect, though PW-14 did not state that the bus came in the opposite direction at high speed, the learned Judge observed as If PW-14 stated that the bus came In the opposite direction at high speed, she did not refer the high speed. She stated that the bus came at a speed. Therefore, the observation of the learned appellate Judge Is contrary to the record.

At paragraph 11, the learned Judge observed as follows :

Thus, as seen from the evidence of PW-14 coupled with the evidence of PWs-1 to 3, it is noticed that they were travelling in a jeep and R.T.C. bus came in their opposite direction at high speed and dashed, thus, the jeep turned turtle, thus, some of them sustained injuries and some of them died instantaneously.

So far as PWs-1 and 2 are concerned, they did not state anything about the speed of the bus and they never stated that the bus was at fault. Even PW-3 did not state that the bus driver was at fault. He simply stated that the bus came with high speed in the opposite direction and dashed against the jeep. As already observed supra, this witness was treated hostile by the prosecution. Further, I have already discussed supra about the reliability of the evidence of PW-3 in respect of the speed of the bus. The learned appellate Judge failed to note that PW-3 in his evidence stated that there was a tractor stationed on the left side of the road while proceeding towards Karimnagar, The learned appellate Judge grossly erred in going by the word 'high speed' mentioned in the evidence of PW-3.

33. Besides the said oral evidence the learned appellate Judge also drew certain inferences from the circumstances. In paragraph 13 of the judgment, the learned appellate Judge observed as follows :

The Impact of the dash can be easily Inferred with the help of doctrine 'res ipsa loquitur' when four persons died instantaneously on account of shock and haemorrhage and four others sustained injuries, only due to rash and negligent driving of the R.T.C. bus. Thus, the Injuries and deaths could have caused, Thus, It can be Inferred that due to negligence of the R.T.C. bus driver four deaths simultaneously (sic) besides Injuries sustained to other passengers. Moreso, the Motor Vehicle Inspector categorically stated that the accident occurred not due to mechanical defect and he found Jeep brakes intact. From the evidence of Motor Vehicle Inspector, it can easily be Inferred that he could not apply brakes. Even assuming that he could have applied brakes, he has to applied brakes to a considerable distance to avert the accident." I am unable to understand as to how the learned Judge has applied the maxim 'res ipsa loquitur' to draw Inference of rash and negligent driving on the part of the accused. When there is absolutely no legal evidence to prove the circumstances, how could the impact of the dash could be Inferred with the help of the said doctrine. The Inference drawn by the learned appellate Judge Is perverse. Even the observations regarding the evidence of motor vehicle Inspector are also not sound. I am unable to understand as to how the learned Judge could easily drew the inference that the jeep driver could not apply brakes when the jeep brakes were Intact.

34. Further in paragraph 15 of the judgment, the learned appellate Judge further observed as follows :

From the evidence of PWs-1 to 3 to some extent coupled with the evidence of PW-14 and the medical evidence and also the evidence of Motor Vehicle Inspector PW-13,

from all standpoints, It can, undoubtedly hold that the accident took place due to rash and negligent driving of the bus driver. Accordingly, the trial Court also came to right conclusion and convicted the accused for the punishment as detailed at the outset." I have already discussed about the evidence of PWs-1 to 3 and 14 and also discussed about the evidence of PW-13-Motor Vehicle Inspector. Their evidence do not in any way establish the rash and negligent driving on the part of the bus driver much-less beyond reasonable doubt. The learned appellate Judge also appears to have been prejudiced by the ghastly nature of the accident. He did not properly appreciate the evidence on record. He also relied on the circumstances, which are not legally brought on record. The improper appreciation of legal evidence on record by the Courts below resulted in miscarriage of justice. Therefore, there is a need for Interference by this Court in this revision. Thus, this point is found in favour of the revision petitioner.

35. In the result, the Criminal Revision Case is allowed. The conviction and sentence recorded against the revision petitioner in C.C. No. 282 of 2001, dated 11-12-2002 on the file of the Judicial Magistrate of First Class (Mobile), Karimnagar which was confirmed in Cri.A.No. 184 of 2002, dated 10-6-2003 on the file of the III Additional Sessions Judge, Karirnagar are hereby set aside and the revision petitioner is acquitted of the said charges. The revision petitioner shall be set at liberty forthwith if not required in any other case. His bail bonds shall stand cancelled. The fine amount if any paid, shall be refunded to the revisied petitioner.